

Rehan Ahmad v. State of U.P. and Another

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 6 August 2024 · 2024:AHC-LKO:53749-DB · Writ - C No. 6690 of 2024 · **Writ disposed; Executive Engineer to decide the clause 6.5 representation within four weeks.**

HEADNOTE

A writ for correction of electricity bill C GGO1601016133, where a representation dated 08.07.2024 was already before the Executive Engineer, was disposed of by directing that officer to consider the grievance under paragraph 6.5 of the Electricity Supply Code and pass appropriate orders within four weeks of production of a certified copy.

FACTUAL SUMMARY

Rehan Ahmad approached the Lucknow Bench for a mandamus directing opposite party no. 2 to correct the electricity bill for connection C GGO1601016133 and to decide his representation dated 8 July 2024. Counsel for the licensee submitted that a remedy lay under paragraph 6.5 of the Electricity Supply Code and that the petitioner had already represented to the Executive Engineer, as Annexure-05 showed. The Court heard the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending bill representation to the Executive Engineer

HOLDING

The writ seeking correction of bill C GGO1601016133 and a decision on the representation dated 08.07.2024 is disposed of with a direction to the Executive Engineer, to whom that representation under paragraph 6.5 of the Electricity Supply Code has already been made, to look into the grievance and pass appropriate orders within four weeks of production of a certified copy of the order. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The representation dated 08.07.2024 was already with the Executive Engineer; the writ was disposed by directing that officer to look into the billing grievance and pass orders within four weeks. ¶ 3-4

alternate-remedy-clause-6.5 The licensee invoked paragraph 6.5 as the remedy for the disputed bill, and the Court left the grievance to the Executive Engineer without correcting the bill itself. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILL C GGO1601016133 WAS LIABLE TO BE CORRECTED

Left to the Executive Engineer to pass appropriate orders on the representation dated 08.07.2024. ¶ 4